

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 02/03/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-00873
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. ORLANDO SERRANO
*HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO CCP 6646
FILED BY: AMERICAN EXPRESS NATIONAL BANK
TENTATIVE RULING:

Background

Plaintiff filed, on 11/10/26, a motion to enter judgment pursuant to stipulation.

This Motion is unopposed, and mail service was completed at the address listed by Defendant in his Answer.

Analysis

The parties entered into a CCP 664.6 agreement on 9/13/24 , and filed on 12/20/24, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$8,005.97, plus costs, and less

any credits for payments received.

The Defendant made partial payment, totaling \$3,466.58, but then stopped all payments.

Costs are \$361.21. A memo on costs was filed 11/10/25.

The Stipulated Agreement was filed 7/21/25.

A dismissal was entered on 7/21/25.

Plaintiff filed a Memo on Costs on 11/20/25, allocating total costs to filing fees and service costs.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,900.60.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L24-06141
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. RYAN LOCKHART
***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**
FILED BY: JPMORGAN CHASE BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed, on 11/10/25, a motion enter judgment pursuant to stipulation (hereinafter, Motion).

This Motion is unopposed, and mail service was completed on the Defendant's attorney of record.

Analysis

The parties entered into a CCP 664.6 agreement on where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then judgment would be entered in the amount of \$5,924.31 less any credits for payments received.

The Defendant made no payments.

The Stipulated Agreement was filed 11/10/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,924.31

Plaintiff to file order on Motion, as well as submit judgment.

3. 9:00 AM CASE NUMBER: L25-01238
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. GILBERTO CASTRO
***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**
FILED BY: JPMORGAN CHASE BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed, on 11/13/25, a motion to enter judgment pursuant to stipulation. The motion was served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$7,268.19, less any credits for payments received.

Defendant made total payments in the amount of \$606; thus, the judgment amount should be \$6,662.19.

The Stipulation was filed on November 13, 2025.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$6,662.19.

Plaintiff to file order on Motion, as well as submit Judgment.

4. 9:00 AM CASE NUMBER: L25-03900
CASE NAME: BANK OF AMERICA, N.A. VS. JOEL DE LAS ALAS
***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF**
STIPULATED SETTLEMENT
FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 1/15/26, a motion to vacate dismissal and enter judgment pursuant to stipulation. Their initial motion to vacate was filed 11/20/25.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,523.03, plus costs, and less any credits for payments received.

After making some payments, the principal is \$6,148.03, and court costs are \$583.61.

The Stipulated Agreement was filed 7/21/25.

The Order on Settlement Agreement and Stipulation for Judgment, leading to dismissal, was filed on 10/21/15.

Plaintiff filed a Memo on Costs on 11/20/25, allocating total costs to filing fees and service costs.

The Motion is unopposed. There is proof of mail service to an address at Sunflower Lane, in Concord. Though Defendant never filed an Answer in this matter, the Complaint does list the same address as the one used for service of this Motion; and, the Defendant did enter into an agreement in the instant matter. Thus, the Court finds that the Defendant was on notice of the cause of action in the instant matter, and that mail service of this Motion is sufficient.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$6,662.19.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L25-04656

CASE NAME: CAPITAL ONE, N.A. VS. MIGUEL GONZALEZ

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 1/15/26, an amended motion to vacate dismissal and enter judgment pursuant to stipulation. This motion is untimely. Plaintiff's initial motion to vacate dismissal and enter judgment was filed on 11/20/25. The court will address the merits of the initial motion only (hereinafter, Motion).

This Motion is unopposed, and mail service was completed at the address where the Defendant was personally served with the Complaint.

Analysis

The parties entered into a CCP 664.6 agreement on 6/7/25 where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$1,813.12, plus costs, less any credits for payments received.

The Defendant made no payments.

Costs are \$583.61. A memo on costs was filed 11/20/25.

The Stipulated Agreement was filed 7/21/25.

A dismissal was entered on 7/21/25.

Plaintiff filed a Memo on Costs on 11/20/25, allocating total costs to filing fees and service costs.

The Motion is unopposed. There is proof of mail service to an address at Sunflower Lane, in Concord. Though Defendant never filed an Answer in this matter, the Complaint does list the same address as the one used for service of this Motion; and, the Defendant did enter into an agreement in the instant matter. Thus, the Court finds that the Defendant was on notice of the cause of action in the instant matter, and that mail service of this Motion is sufficient.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,396.73

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L25-05653
CASE NAME: MARCOS RAMOS VENTURA VS. BABUSHKA RUSSIAN DELI & CAFE, INC.
***HEARING ON MOTION IN RE: STRIKE DEFENDANT'S ANSWER**

FILED BY: RAMOS VENTURA, MARCOS

TENTATIVE RULING:

Background

Plaintiff filed a Motion to Strike Defendant's Answer, on November 19, 2025. The Motion is unopposed, but there is no proof that Defendant has been served.

Disposition

Motion will be continued to 3/10/26 9a.m. for Plaintiff to serve notice of motion on Defendant.

**7. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
HEARING ON DEMURRER TO: TO FIRST AMENDED COMPLAINT BY DEFT ON 9-29-25
FILED BY: ATWATER, STEPHEN W
TENTATIVE RULING:**

Background

Defendant filed a Demurrer to Plaintiff's first amended complaint on 9/29/25, with a Memo of Points and Authorities.

Plaintiff filed a Response and requested leave to amend should the Court sustain the Demurrer to any causes of Action.

Analysis

A party may demur if "[T]he pleading does not state facts sufficient to constitute a cause of action." Section 430.10(e) of the Code of Civil Procedure. The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39

Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. Leave to amend can be granted for a plaintiff to allege an omitted cause of action, based on the alleged facts. *Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 216. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

Ordinary negligence requires a showing that a breach of duty has occurred that is owed to the public generally, rather than a professional duty owed by a health care provider to his patients. *Gutierrez v. Tostado* (2025) 18 Cal.5th 222, 229).

An enforceable contract requires that a promise must be sufficiently definitive so that a court can “ascertain the parties’ obligations and to determine whether those obligations have been performed or breached.” *Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 209.

A cause of action for Intentional Infliction of Emotional Distress requires extreme and outrageous conduct. *McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1515. Such conduct exists when “[I]t is so extreme as to exceed all bounds of that usually tolerated in a civilized community.” *Id.*

Finally, with a cause of action for Fraudulent Concealment, without a fiduciary relationship between Plaintiff and Defendant, Plaintiff must allege that Defendant knew of material facts, “[A]nd also (knew) that these facts (were) neither known nor readily accessible to the other party.” *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 749-750. The plaintiff must have sustained damages as a result of the concealment. *Id.* at 748. And the facts for this cause of action must be pled with specificity. *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.

In the instant matter, the facts alleged for the First Cause of Action sufficiently state a case for Professional Negligence. To the extent that Plaintiff, by virtue of checking the box for Negligence, intended to allege a Cause of Action for Ordinary or General Negligence, demurrer to that cause of action is sustained without leave to amend.

For the Second Cause of Action, the court is not aware that “Misdiagnosis,” is a proper cause of action. Moreover, the facts alleged are virtually identical to those in the First

Cause of Action. The court would sustain the Demurrer to this Cause of Action, and deny leave to amend.

For the Third Cause of Action, the allegations – that Defendant did not thoroughly read the diagnostic report and did not provide the appropriate level of treatment – do not sufficiently state what care Defendant agreed to provide. The court further finds that, in all probability, amendment would be futile. There is no suggestion, based on the alleged facts, that anything more definitive with respect to an agreement on care exists. Thus, the court would deny leave to amend.

For the Fourth Cause of Action, the allegations that Defendant: failed to identify the second diagnosis of Large Cell Lymphoma, two times, in the Histopathology Report; failed to properly apologize to the Plaintiff; Attempted to shift the blame to Plaintiff in a card of sympathy; and made a casual comment about his ability to perform surgery, can, in no way, rise to the level of extreme and outrageous conduct. It is very unlikely that amendment could cure this defect. The court would deny leave to amend.

Finally, for the Fifth Cause of Action, even assuming that Defendant did actively conceal the diagnosis of Small Cell Lymphoma in the medical records, he had already given this diagnosis, verbally, to Plaintiff. Amendment cannot cure this defect. The court would deny leave to amend.

Disposition

Defendant's Demurrer is sustained to all Causes of Action except the First Cause of Action.

To the extent that Plaintiff is seeking a Cause of Action for Ordinary Negligence, the court sustains the Defendant's Demurrer to this as well.

The court denies leave to Plaintiff to amend the Complaint.

Plaintiff to file Amended Complaint within 10 court days of this Order.

Defendant to draw and file Order.

8. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
***HEARING ON MOTION IN RE: STRIKE COMPLAINT BY DEFT ON 9-29-25**
FILED BY: ATWATER, STEPHEN W
TENTATIVE RULING:

Background

Defendant filed, on 9/29/26, a Motion to strike portions of Plaintiff's First Amended Complaint.

The Plaintiff filed a Response.

Disposition

This Motion will be continued to 4/14/26, 9am.

This will serve as notice to the parties.

9. 9:00 AM CASE NUMBER: L25-06838
CASE NAME: CAPITAL ONE, N.A. VS. GLORIA QUESADA
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CLINTON ROONEY
FILED BY: QUESADA, GLORIA
TENTATIVE RULING:

Appearance required. The Court will elicit reason for Defense counsel's motion to withdrawal in camera. Counsel may appear by Zoom.

10. 9:00 AM CASE NUMBER: L25-08756
CASE NAME: SECURITYPLUS FEDERAL CREDIT UNION VS. LAUREN PORTER
*HEARING ON MOTION IN RE: TO TRANSFER VENUE AND JURISDICTION
FILED BY: PORTER, LAUREN
TENTATIVE RULING:

Background

Defendant has filed a Motion to transfer venue, on 11/12/25.

There is no proof that notice of the Motion was given to Plaintiff.

The Motion is unopposed.

Disposition

Motion will be **continued** to 4/14/26, 9 a.m. for Defendant to serve notice on Plaintiff.

11. 9:00 AM CASE NUMBER: L25-09216
CASE NAME: ADOLFO GONZALEZ VS. LANGLEY FEDERAL CREDIT UNION

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: LANGLEY FEDERAL CREDIT UNION

TENTATIVE RULING:

Background

Defendant filed a Motion to Compel Arbitration and Stay proceedings (“Motion to Compel”), as well as a Motion to Issue a Protective Order over discovery (“Motion for Protective Order”), on 11/12/25.

Plaintiff timely responded to both motions.

Defendant subsequently filed timely Replies.

Defendant claims that Plaintiff’s causes of action arises from the account agreement between the two parties, and that this agreement required arbitration upon the election of either party. As a consequence, Defendant contends this action in civil court should be stayed pending completion of arbitration.

Defendant also desires that a Protective Order issue during the Stay, precluding any discovery related to the civil causes of action.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

In the instant matter, the court finds that a written agreement to arbitrate exists. The Court further finds that there is a controversy between the parties that is subject to that agreement as pled in the operative Complaint by Plaintiff. Plaintiff claims that Defendant failed to abide by the terms of the agreement – a loan for a car purchase - when they filed a lien against the vehicle after Plaintiff stopped making payments on the loan.

The court finds that Defendant properly notified Plaintiff of their election to arbitrate, under the terms of the agreement, by virtue of indicating so in their Answer, as well as through a letter to Plaintiff reflecting as much (included as an Exhibit in Defendant’s Motion to Compel).

The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with

the agreement to arbitrate.

The Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

The court, however, does not see the need to issue a further protective order with respect to any discovery in the matter. That the matter is stayed is sufficient to guard against any further discovery demands made by Plaintiff while arbitration is pending.

Disposition

Motion to Compel Arbitration and Stay Proceedings is **granted**.

Motion to Issue Protective Order is **denied**.

Defendant to file order for both motions.

12. 9:00 AM CASE NUMBER: L25-09216
CASE NAME: ADOLFO GONZALEZ VS. LANGLEY FEDERAL CREDIT UNION
***HEARING ON MOTION IN RE: FOR PROTECTIVE ORDER**
FILED BY: LANGLEY FEDERAL CREDIT UNION
TENTATIVE RULING:

Background

Defendant filed a Motion to Compel Arbitration and Stay proceedings (“Motion to Compel”), as well as a Motion to Issue a Protective Order over discovery (“Motion for Protective Order”), on 11/12/25.

Plaintiff timely responded to both motions.

Defendant subsequently filed timely Replies.

Defendant claims that Plaintiff’s causes of action arises from the account agreement between the two parties, and that this agreement required arbitration upon the election of either party. As a consequence, Defendant contends this action in civil court should be stayed pending completion of arbitration.

Defendant also desires that a Protective Order issue during the Stay, precluding any discovery related to the civil causes of action.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before

Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

In the instant matter, the court finds that a written agreement to arbitrate exists. The Court further finds that there is a controversy between the parties that is subject to that agreement as pled in the operative Complaint by Plaintiff. Plaintiff claims that Defendant failed to abide by the terms of the agreement – a loan for a car purchase - when they filed a lien against the vehicle after Plaintiff stopped making payments on the loan.

The Court finds that Defendant properly notified Plaintiff of their election to arbitrate, under the terms of the agreement, by virtue of indicating so in their Answer, as well as through a letter to Plaintiff reflecting as much (included as an Exhibit in Defendant's Motion to Compel).

The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the agreement to arbitrate.

The Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

The Court, however, does not see the need to issue a further protective order with respect to any discovery in the matter. That the matter is stayed is sufficient to guard against any further discovery demands made by Plaintiff while arbitration is pending.

Disposition

Motion to Compel Arbitration and Stay Proceedings is **granted**.

Motion to Issue Protective Order is **denied**.

Defendant to file order for both motions.

13. 9:00 AM CASE NUMBER: L25-10452

CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO

*HEARING ON MOTION IN RE: AND NOTICE TO COMPEL ARBITRATION AND STAY PROCEEDING
FILED BY:

TENTATIVE RULING:

Background

Defendant filed a Motion to compel arbitration and stay proceeding, on 12/15/26.

Plaintiff filed a Response in opposition on 1/13/26. Defendant then filed a Reply, on

1/28/26, but this is untimely – Replies must be filed at least 5 court days in advance of the hearing – and the court will not consider it.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

It is the moving party's burden to prove the existence of such an agreement. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.

In the instant matter, insufficient evidence was provided to the court to show the existence of any agreement, let alone one that contained an arbitration provision. No exhibits contained any signed agreements between the parties, and neither did the Complaint.

Disposition

Defendant's Motion is **denied**.

Defendant to file the Order.

14. 9:00 AM CASE NUMBER: MSL22-00512

CASE NAME: BANK OF AMERICA VS RODRIGUEZ

***HEARING ON MOTION IN RE: FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION**

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion to vacate dismissal and for entry of judgment per stipulated agreement.

The Motion is unopposed.

Proof of service for this Motion, however, suggests mail service on Defendant at an address that is not apparent in any prior pleadings or attachments. The only address for Defendant in the Court File is that at which personal service occurred for service of process, and it was a different address than the one indicated for this Motion. No

agreements are attached listing a mailing address for the Defendant.

Disposition

This Motion will be **continued** to 4/14/26, 9 a.m., for Plaintiff to notify Defendant.

15. 9:00 AM CASE NUMBER: N25-2474

CASE NAME: BETTY VETRO VS. TAMPICO HEALTHCARE CENTER, LLC

HEARING IN RE: PETITIONERS' OSC FR TAMPICO HEALTHCARECENTER, LLC'S FAILURE TO MAKE
MED RECS AVAIL & REQ FOR MONETARY SANCT IN AMT OF \$4,550.00 AGAINST TAMPICO
HEALTHCARE, LLC

FILED BY: VETRO, BETTY

TENTATIVE RULING:

Background

Petitioner has filed an OSC and request for sanctions for Respondent's failure to provide medical records, under Section 1158 of the Evidence Code.

The OSC is unopposed.

However, there is no proof that Petitioner has served the Respondent with the Petition. Moreover, Petitioner's "Reply" and Memo supporting the Reply were filed and served on 1/27/26. These documents are untimely.

Disposition

The Petition is **continued** to April 14, 2026, at 9 a.m., for Petitioner to serve Respondent with the Petition.

Petitioner is to file the order on the continuance.